

# The U.P. Basic Education Staff Rules, 1973

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State of Uttar Pradesh - Act

The U.P. Basic Education Staff Rules, 1973

UTTAR PRADESH

India

The U.P. Basic Education Staff Rules, 1973

Rule THE-U-P-BASIC-EDUCATION-STAFF-RULES-1973 of 1973

Published on 17 November 1973

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The U.P. Basic Education Staff Rules, 1973

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UP94

In exercise of the powers conferred by sub-section (1) of Section 19 of the Uttar Pradesh Basic Education Act, 1972, the Governor is pleased to make the following rules :

1.

Short title and commencement. -

(1)

These rules may be called the Uttar Pradesh Basic Education Staff Rules, 1973.

(2)

They shall come into force at once.

2.

Appointing authority. -

For the posts mentioned in column 1 of the Schedule appended to these rules, the authority mentioned in column 2 against each shall be the appointing authority in respect of the said post.

3.

Punishment. -

The appointing authority may, for good and sufficient reasons, impose the following penalties upon the officers, teachers and other employees of the Board :

(i)

Censure;

(ii)

with holding of the increments including stoppage at an efficiency bar;

(iii)

reduction to a lower post of time-scale, or to a lower stage in a time-scale;

(iv)

recovery from pay of the whole or part of any pecuniary loss caused to the Board by negligence or breach of orders;

(v)

removal from the service of the Board which does not disqualify him from future employment;

(vi)

dismissal from the service of the Board which ordinarily disqualifies him from future employment.

4.

Suspension. -

(i)

A person against whose conduct an inquiry is contemplated or its proceeding may be placed under suspension pending the conclusion of the inquiry, in the discretion of the appointing authority.

(ii)

An employee of the Board who is placed under suspensions shall be granted subsistence allowance during his suspension period at such rate and subject to such rules as are applicable to a servant of the Uttar Pradesh Government, from time to time, and the said rules shall apply mutatis mutandis to employees of the Board.

5.

Appeal. -

An appeal shall lie from an order passed by the appointing authority in respect of the posts mentioned in column 1 of the Schedule appended to these rules, imposing upon any officer, teacher or other employee of the Board any of the penalties mentioned below, to the appellate authority mentioned in column 3 of the said Schedule :-

(a)

reduction to a lower post on time-scale or to a lower stage in a time-scale;

(b)

removal from service of the Board which does not disqualify for future employment;

(c)

dismissal from the service of the Board, which ordinarily disqualifies from future employment.

(2)

In case of other penalties against which no appeal is provided in this rule, the punished officer, teacher or other employee of the Board may make a representation against the imposition of any of these penalties to such officer as the Director of Education (Basic) may by general orders from time to time specify in this behalf.

(3)

The procedure laid down in Civil Services (Classification, Control and Appeal) Rules, as applicable to servants of the Uttar Pradesh Government shall, as far as possible, be followed in disciplinary proceedings, appeals and representations under these rules.

6.

Disciplinary proceedings pending against the officers, teachers and other employees transferred to the Board under sub-section (1) of Section 9 immediately before the date these rules come into force, shall be conducted by the

appointing authority mentioned in Column 2 of the Schedule.

7.

Any appeal or representation made against the order of punishment by any officer, teacher or other employee transferred to the Board under sub-section (1) of Section 9 and pending immediately before the date these rules come into force, shall stand transferred to and be disposed of by the authority competent to decide such appeal or representation under these rules.

Schedule

Sl.No.

Name of the Post

Appointing Authority

Appellate Authority

1.

Education Superintendent (Male and Female)

Director of Education (Basic)/Chairman of the Board.

State Government

2.

Assistant Attendance Officer (Male and Female)

Deputy Director Education (Elementary)/Member-Secretary of the Board.

Chairman of the Board.

3.

Head Clerk.

Ditto.

Ditto.

4.

Accountant.

Ditto.

Ditto.

5.

Storekeeper.

District Basic Education Officer

Member-Secretary of the Board.

6.

Other Clerks.

Ditto.

Ditto.

In Rural Areas

7.

Class IV employees of Offices and Institutions

Deputy Inspectors of Schools/Deputy Inspectresses of Schools.

District Basic Education Officers

In Urban Areas

Education Superintendent/

Lady

Ditto.

Education Superintendent

8.

Headmasters/Headmistresses in Senior Basic Schools.

District Basic Education Officer/ Additional District Basic Education. Officer (Women).

Chairman of the Board.

9.

Assistant Teachers/Mistresses of Senior Basic Schools.

Ditto.

Member-Secretary of the Board.

10.

Headmasters/Headmistresses of Junior Basic Schools

Ditto.

Ditto.

11.

Assistant Teachers/Mistresses of Junior Basic Schools

District Basic Education Officer/ Additional District Basic Education Officer (Women)

Member-Secretary of the Board

12.

Headmistresses of Nursery Schools.

Ditto.

Ditto.

13.

Assistant Mistresses of Nursery Schools

Ditto.

Ditto.

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